

20 October 2024
Alan Bell
Registered Forestry Consultant

Via Email: bellac@xtra.co.nz

Dear Alan

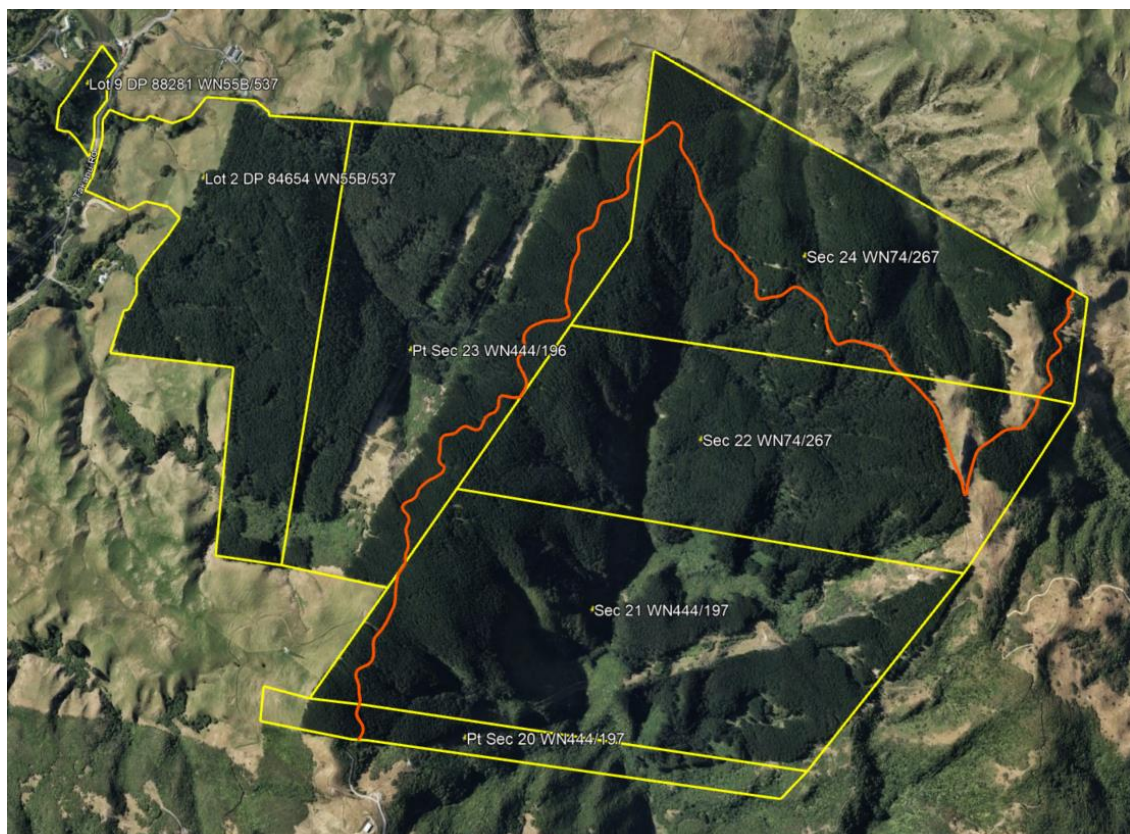
RE: Lifestyle Potential for Takapu Forest.

Further to your request to determine the lifestyle opportunities for Takapu Forest, situated on Takapu Road, with the rear of the property gaining access via the top end of Horokiwi Road. We provide our feedback as follows:

1. Brief Property Description

The property is in the Wellington City Local Authority area and subject to the District Plan. The east (rear boundary) also forms the boundary between Wellington City Council and the Lower Hutt City Council, with Horokiwi Road being within the Wellington City Council area.

The property is mapped below showing the Lots and Titles and the ROW from the end of Horokiwi Road:



The legal Titles are as follows:

Record of Title	Legal Description	Lot Hectares	Title Hectares
WN74/267	Section 22 Horokiwi Road District	42.4919	84.9838
	Section 24 Horokiwi Road District	42.4919	
WN444/197	Part Section 20 Horokiwi Road District	52.7629	62.2711
	Section 21 Horokiwi Road District	9.5082	
WN444/196	Part Section 23 Horokiwi Road District	50.5857	50.5857
WN55B/537	Lot 2 DP 84654	36.4410	37.7788
	Lot 9 DP 88281	1.3378	
WN46B/581	Lot 4 DP 50892	0.0010	0.0010
Total		235.6204	

We note that WN 46B/581 is a narrow “spite strip” across the end of Horokiwi Road and is only subject to the Transpower ROW.

2. Resource Management

The property is in Wellington City Council’s Rural Zone.

District Plan

Authority

Wellington City Council.

Zoning and Planning Document

Wellington District Plan – operative 27 July 2000.

Wellington City Council issued a Public Notice on 14 March 2024 that it accepted all of the Panel’s recommendations on the Hearing Streams 1 – 5 provisions under the Standard Process. There is a further right of Appeal to the Environment Court on these Streams only. Where there is no appeal, those parts will be fully operational.

As at 6 April Hearing Streams 6 - 10 on the remaining Proposed District Plan chapters were underway and decisions on these provisions are due in early 2025.

It will be fully operation after decisions are made on any appeals, expected in 2025.

Operative District Plan

Zoning

Rural Zone under the Wellington District Plan.

Zoning Objectives

The anticipated environmental outcomes are to promote the efficient use and development of natural and physical resources in the Rural Area.

Permitted Uses

Permitted activities within the Rural zone (provided they comply with the relevant conditions and rules) include:

- Rural and residential activities subject to conditions.
- Work from home subject to conditions.
- Small scale clean fills and earthworks.
- Residential and accessory buildings except on ridgelines or hilltops subject to conditions.
- Utilities.



Development Controls

The following are included in the general conditions of the plan and are relevant to the subject property:

- The maximum gross floor area is 400 square metres for one accessory building or an aggregated total gross floor area of 800 square metres for the site.
- The maximum building height is eight metres.

Subdivision Controls

Unlike most Rural Zoned areas, subdivision in the subject properties and surrounding Rural Zoned properties is an Unrestricted Discretionary Activity compared to the standard less restrictive Controlled Activity.

The District Plan states that "...as the ability to subdivide in these areas is a departure from a fairly strict approach in the past ...subdivision will be limited in most areas, from a parent lot of 30 hectares or greater, every five years..."

Therefore, the minimum size of allotment that may be subdivided is 30 hectares with the remainder lot being at least 30 hectares in area, and the Title must be at least 5 years old from the deposit of a survey plan.

Criteria Council Must Consider for Subdivision

In determining whether to grant a subdivision consent and what conditions to impose, Council will have regard to the following criteria:

- Section 106 of the RMA, risk from natural hazards or adequate provision has not been made for legal and physical access to each allotment.
- Whether the subdivision will facilitate the operation of rural or other lawfully established activities.
- Whether suitable access to a formed public road is retained or is to be provided for the proposed subdivision.
- The extent of compliance with the relevant parts of the Code of Practice for Land Development
- The extent that the subdivision, access and building location will meet the objectives and guidelines of the Rural Area Design Guide.
- Whether the proposal makes adequate provision for services including water supply, stormwater runoff control and sewage treatment. Where the proposal is located near an existing urban area or an existing residential subdivision, consideration should be given to the undergrounding of services.
- Whether any special heritage, amenity or ecological features are proposed to be protected by the proposed subdivision, including:
 - Whether any areas of native vegetation or wetlands are to be protected by covenants or other mechanisms.
 - Whether any heritage feature is to be acknowledged and protected.
 - Whether public access will be facilitated to protected amenity features.

Draft Wellington City Plan

Zoning

Under the Draft Plan, the zoning boundaries on the properties do not change. The Rural Zone becomes the General Rural Zone.

Subdivision Controls

Subdivision in the General Rural Zone is Restricted Discretionary where:

- A maximum of two lots.
- Minimum size of allotment that may be subdivided is 30 hectares.
- No minimum size for a Lot following subdivision.



- Any allotment to be subdivided must be at least five years old from the deposit of survey plan and identify a building platform for any existing or proposed residential unit no closer than 100 metres to any other existing or proposed building platform for a residential unit, otherwise it is a fully discretionary activity.

There are additional discretionary requirements for subdivision in Significant Natural Areas (SNA) relating to protection of ecological values.

Access:

An on-site carpark associated with a residential activity is considered to generate 10 light vehicle movements per day. A lifestyle block would be considered a residential activity. There are 3 levels of Driveway

Level 1, 2 and 3 Driveways have the following specifications:

Level	Light Vehicle Movements per Day	Heavy Vehicle Movements per Week
1	1 to 30	Up to 2
2	31 to 60	3 to 4
3	61 -200	5 to 8

They have the following Design Specifications

Level	Design km/h	Gradient	Footpath	Vehicle Lane	Infrastructure	Legal Width
1	10	25%	In Road	1 x 3m wide	In Road Lane	3m + passing bays
2	10	20%	1 x 1m wide	6m of 2 x 3m wide then 1 x 3m wide	In Road Lane	4m + passing bays
3	20	16%	1 x 1.5m wide	2 x 3m wide	1 x 1m wide	8.5m

Gradient: 2m transition length for grade changes > 12.5%

Gradient: Where rising to meet the road, 5% max gradient within 6m of road boundary.

Vehicle Lane: Where single, maximum passing bay spacing 50m, clear line of sight between bays.

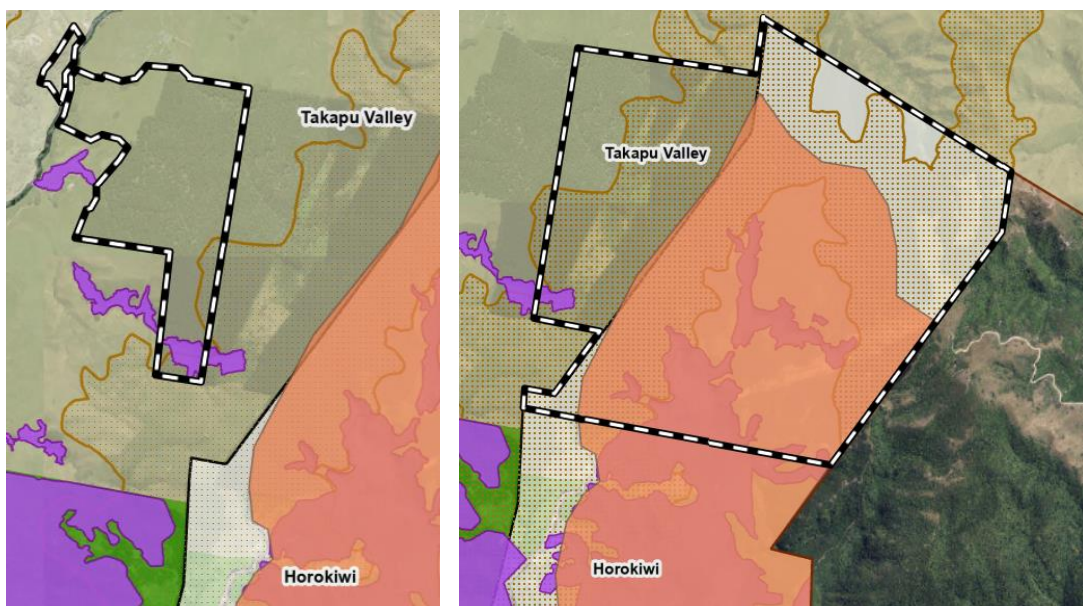
Buildings and Structures

One building per site in the General Rural Zone, requiring that the design, external appearance, siting, and associated site landscaping of any new unit is consistent with the Rural Design Guide.



Subject Property

The below plans are overlays of the District Plan on the subject property. They indicate a number of overlays which affect it:



The white area is the Horokiwi Area which has specific controls.

The brown dotted area is the Ridgelines and Hilltop Overlay.

The orange area is the Special Amenity Landscapes (SAL) Overlay.

The purple areas which become pink under the SAL overlay are Significant Natural Areas (SNAs). The effect of these have been negated at present by the current Government. These have limited effect as the SNAs are in the unplanted gullies, well away from any development potential.

Effect of Horokiwi Area Specific Controls

SUB-S6 - Number, size and shape of allotments in the General Rural Zone:

- The maximum number of allotments following subdivision is 2 meaning only one lot can be subdivided off at one time;
- The minimum size of allotment that may be subdivided in the Horokiwi Area is nil; while
- The minimum size of any allotment following subdivision in the Horokiwi Area is 50 hectares.

We note that the 5 year time restriction from the deposit of survey plan remains in place.

This means that a minimum 100 ha lot would be required (after any boundary adjustments) to get two separate lots in this overlay area, which effectively means that one would utilise the current existing lots.

Zoning Implications of the Ridgelines and Hilltops Overlay

A large proportion of the land to be acquired is affected by the ridgelines and hilltops overlay. The plan states that "Wellington's ridgelines and hilltops are an important and sensitive feature of the landscape. The rural area to the west is characterised by rugged and broken hill country. The management of built form and earthworks on identified ridgelines and hilltops is a key resource management issue for Wellington.

Rule NFL-R10 provides for the construction of buildings and structures within the overlay as a permitted activity where compliance can be achieved with the underlying zone and district

wide provisions. Where compliance cannot be achieved, such as in the instance of more than one dwelling being proposed within the General Rural Zone, then resource consent is required as a restricted discretionary activity. Discretion is restricted to the matters outlined in Policy NFL-P2 (below) and "the operational and functional need to locate within the ridgeline and hilltop area".

This will further diminish the likelihood of resource consent being successfully obtained for a greater level of residential development within the rural portion of the site (or within the open space portion of the site) where the Ridgelines and Hilltops overlay applies.

At the level of objectives and policies, which would be a relevant consideration for a resource consent application from notification of the PDP, the following relate to the Ridgelines and Hilltops overlay:

Objective NFL-O3 Ridgelines and hilltops:

- The natural green backdrop provided by identified ridgelines and hilltops is maintained.

Policy NFL-P2 Use and development within ridgeline and hilltops:

- Enable use and development within identified ridgelines and hilltops where:
 1. The activity is compliant with the underlying zone provisions; and
 2. There is a functional or operational need to locate within the ridgeline and hilltop area; and
 3. Any adverse effects on the visual amenity and landscape values can be mitigated.

Therefore, activities will be carefully assessed to ensure that where development is proposed in these areas, it is done in a comprehensive and sensitive manner responsive to the local natural features. The Rural Design Area Guide will assist Council's control in this regard. Opportunity for design solutions is possible through the assessment criteria. Careful consideration will be given to proposals which might result in the modification of skylines when viewed from any place outside the subject property.

In addition to the above assessment criteria, the issue of earthworks is also addressed, ensuring that they are designed to reflect natural landforms and are properly engineered to be safe. Earthworks that do not comply with the permitted activity conditions for earthworks in the Ridgelines and Hilltops Overlay (Rural Area and Open Space B) are a Discretionary (Unrestricted) Activity.

Effect of the Special Amenity Landscapes (SAL) Overlay

The limitations for properties in this overlay are as follows: One building per site in the SAL Overlay area, a maximum height of 5 metres with reflectance and colour palette requirements.

3. Development Potential

WN444/197 and WN74/267

Part Section 20, Sections 21, 22 and 24 Horokiwi are all within the Horokiwi Area and therefore have limited capacity for further subdivision. They are already in two Titles, and it is the Titles, not the lots that are taken into account when doing a subdivision. Therefore, there is no benefit from further subdivision of these lots.

Apart from Part Section 20, at which Horokiwi Road terminates, none of the above sections have a road frontage, and the only access is via a ROW in favour of Transpower which provides road access for their tower maintenance.

WN74/267 and WN444/197 could be sold separately, with access via the ROW, but that would only be of benefit if a building site on each one reasonably close to the ROW could be identified and say circa 1 hectare cleared to accommodate it in a location and of a design that would meet the Ridgelines and Hilltops overlay along with the SAL building requirements. The forest and carbon income could potentially be retained via a forestry right.

WN444/196

WN444/196, Part Section 23 has a separate Title, and it is not within the Horokiwi Area. It is able to be subdivided down to 30 hectares so a small block (with access via the ROW) could be subdivided off. It would need to meet the requirements of the Ridgelines and Hilltops overlay building requirements and meet the Transpower ROW rights which appears to exceed the Council's building distance from transmission lines requirements.

However, there is a Caveat on WN444/196 which prevents the registration of any Memorandum of Transfer or other instrument affecting the Title. The Caveat is in place so that the Title can only be sold to an adjoining owner, no doubt because the Title does not have access to a legal road. There is a notation on the Title that WN444/197 is an adjoining owner. However, it would appear that the Title could be transferred with WN55B/537 to the west, WN8/148 immediately to the north or WNC2/220 to the south.

WN55B/537

These two lots are separated by the road, however there is an amalgamation condition on the Title so these cannot be sold separately. However, the Title was issued over 5 years ago on 10 Feb 2000, so a site can be developed and sold off from Lot 2 as of right, there being no limitation as to the size except that the remaining Lot must be over 30 hectares in area. Any potential site in the grassed area would overlook the transmission lines to the west.

WN46B/581

This circa 0.6 metre wide and 31 metre long "spite strip" runs across the full width of the Horokiwi Road legal width. These strips generally allow the owners to control development or force payment to allow development or access beyond the spite strip. The Transpower ROW is not affected by this strip.

4. Brief Market Evidence

In the past 6 months there has been 4 vacant lifestyle land sales in the Normandale and Belmont suburbs of Lower Hutt being the hills to the east of the subject block. These are all approximately 2 hectares in area and sold for \$540,000, \$531,000, \$450,000 and \$336,000. The lowest sale is most comparable as it is a moderately falling site in light bush and while there is an excavated track to the potential site, the site will require excavation for a house site.

Sales in the Wellington City rural areas generally sit at around \$450,000 at the low end to \$600,000 plus to the upper end for the house site component (approximately 0.5 hectares) of the property. We are aware of a February 2023 sale at circa \$300,000 for a site where the views (west) were heavily impeded by HT powerlines.

We would therefore expect the site component of potential lifestyle type sales to be in the \$300,000 to \$350,000 range, less the costs of site development and access, but excluding services, whilst the additional land would be at levels indicated by the forest land values in the area.

We trust this provides the information required.

Yours sincerely,



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Director
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Attached: Copy of Caveat

12130 X

[Land Transfer—17.]

CAVEAT BY DISTRICT LAND REGISTRAR.

I, William Nassau Haire, Assistant

District Land Registrar of the Land Registration District of _____

Wellington, in exercise of the powers vested

in me in that behalf, forbid the registration of any memorandum of transfer or

other instrument affecting all that parcel of land containing

125 acres more or less situate in Block VIII of the

Belmont Survey District and being part of

Section 23 of the Horokiviri Road District

adjoining owner 444/197. and being all the land comprised in Certificate

of Title Volume 1114 Folio 196.

until this caveat be by me, or by the District Land Registrar for the time being,
withdrawn. The grounds for entry of this caveat are as follows:—

The above described land can be sold to an
adjoining owner only.

Dated this 20th day of June, 1935

W. N. Haire

Assistant District Land Registrar.

12130

CAVEAT No.

Particulars entered in the Register-book , Vol. 444

folio 196

the day of June 1935
at 10. o'clock.



W. N. Hain
Asst. District Land Registrar.

21.6.35
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